

The GUWAHATI MUNICIPAL CORPORATION (AMENDMENT) ACT, 2019

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State of Assam - Act

The GUWAHATI MUNICIPAL CORPORATION (AMENDMENT) ACT, 2019

ASSAM

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The GUWAHATI MUNICIPAL CORPORATION (AMENDMENT) ACT, 2019

Act 14 of 2019

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AN

ACT

further to amend the Guwahati Municipal Corporation Act, 1969.

Whereas it is expedient further to amend the Guwahati Municipal Corporation Act, 1969, hereinafter referred to as the principal Act, for laying down certain provisions for disqualifications for councilorship of the Corporation and providing for provisions for non-application of the provisions of the Assam Nagara Raj Act, 2007, in respect of the areas covered under Guwahati Municipal Corporation Act, 1969, in the manner hereinafter appearing, It is hereby enacted in the Seventieth Year of the Republic of India, as follows :-

1.

Short title, extent and commencement:

(1)

This Act may be called the Guwahati Municipal Corporation (Amendment) Act, 2019.

(2)

It shall have the like extent as the principal Act.

(3)

It shall come into force at once.

2.

In the principal Act, section 20A shall be deleted.

3.

Amendment of section 47:

In the principal Act, in section 47, in sub-section (1), after clause (k), for the punctuation mark ":" appearing at the end, the punctuation mark ";" shall be substituted and thereafter the following new clauses (L), (m), (n) and (o) shall be inserted, namely:-

"(l) if he/she has more than two living children from a single or multiple partners:

Provided that this provision shall not be applicable in respect of those persons, who have more than two children prior to the date of commencement of this Act;

(m)

if he/she has not passed Bachelor's degree or equivalent examination from any University recognized by the State or the Central Government, as the case may be:

Provided that in case of candidates belonging to Scheduled Castes, Scheduled Tribes, Other Backward Classes (OBC) and More Other Backward Classes (MOBC), the minimum educational qualification shall be H.S.S.L.C or passed equivalent examination under any Board or Council recognized by the State or the Central Government, as the case may be;

(n)

if he/she does not have a functional sanitary toilet in his/her residence premises for the use of the family members;(o) if he/she had been disqualified previously for corruption or if he/she had been convicted for any act under any provision of Law." ?

4.

In the principal Act, after section 444, the following new section 445 shall be inserted, namely :-

"445. Notwithstanding anything contained in the Assam Nagara Raj Act, 2007, the provisions of the said Act shall not apply in respect of the areas covered under the Guwahati Municipal Corporation Act, 1969, and the relevant provisions of the Assam Nagara Raj Act, 2007, shall be deemed to have been amended accordingly."

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